

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DARIN MOORE,

Index No.

S U M M O N S

Plaintiff,

Plaintiff designates
New York County as
place of trial.

- against -

The basis of the
venue is the
location of occurrence.

THE CITY OF NEW YORK, P.O. MICHELLE
GEORGE, and "JOHN DOES 1-5," identity
unknown,

Plaintiff resides at:
1980 Park Ave, #8A
New York, N.Y. 10037

Defendants.

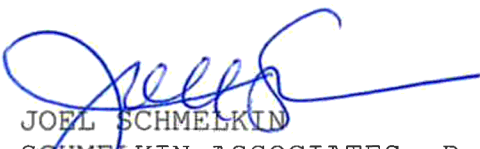
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County of New York

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: Mineola, New York
January 10, 2024


JOEL SCHMELKIN
SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff
DARIN MOORE
Office & P.O. Address
344 Willis Avenue
Mineola, New York 11501
(212) 227-8865
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The City of New York, 100 Church Street, New York, N.Y. 10007
P.O. Michelle George, C/o 78th Pct., 65 6th Avenue, Bklyn, NY 11217
"JOHN DOES 1-5" identity unknown, C/o NYPD, 1 Police Plaza, NY, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

Index No.

DARIN MOORE,

Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, MICHELLE GEORGE
and "JOHN DOES 1-5" identity unknown,

Defendants.

-----X

Plaintiff, **DARIN MOORE**, complaining of the defendants,
by his attorneys, SCHMELKIN ASSOCIATES, P.C., hereby sets forth
and alleges, upon information and belief, as follows:

PRELIMINARY STATEMENT/IDENTIFICATION OF PARTIES

1. That, at all times hereinafter mentioned, and on
February 17, 2023, the plaintiff, **DARIN MOORE**, was and still is a
resident of the County of New York, City and State of New York.

2. That, at all times hereinafter mentioned, and on
February 17, 2023, the defendant, **THE CITY OF NEW YORK**,
(hereinafter referred to as "**THE CITY**") was and still is a
domestic municipal corporation, duly organized and existing under
and by virtue of the laws of the State of New York.

3. That, at all times hereinafter mentioned, and on
February 17, 2023, the defendant, **P.O. MICHELLE GEORGE**,
(hereinafter referred to as "**GEORGE**"), was and still is a
resident of the City and State of New York.

4. That, at all times hereinafter mentioned, and on February 17, 2023, the defendants, **"JOHN DOES 1-5", the names being fictitious and identity unknown**, (hereinafter referred to as **"DOES"**), were and still are residents of the City and State of New York.

5. That, at all times hereinafter mentioned and on February 17, 2023, the defendant **GEORGE**, was a police officer, and/or other agent, servant, and/or employee of the defendant, **THE CITY** and was working within the scope and course of her employment with the defendant, **THE CITY**.

6. That, at all times hereinafter mentioned and on February 17, 2023, the defendants **DOES**, were police officers, and/or other agents, servants, and/or employees of the defendant, **THE CITY** and were working within the scope and course of their employment with the defendant, **THE CITY**.

7. That, the plaintiff, **DARIN MOORE**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim and Supplemental Notice of Claim were served on April 27, 2023, and July 11, 2023, respectively, within ninety (90) days of the date that the within causes of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **DARIN MOORE**, was not requested to testify at an oral examination pursuant to the General Municipal Law, and, that this action is being commenced

herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

8. That on February 17, 2023, the plaintiff had gone to Barclay Center on Pacific Avenue, and Flatbush Avenue, in the County of Kings, City and State of New York.

9. That, thereafter there came a time when he approached the area of Pacific Avenue, and Flatbush Avenue, in the County of Kings, City and State of New York, and was on a public sidewalk thereat.

10. That, thereafter, police officers, and/or other agents, servants and/or employee of the defendant and/or the defendants, had approached the plaintiff.

11. That, there were multiple police vehicles at the aforementioned location.

12. That, without probable cause, without reasonable cause, and without justification, the plaintiff was approached, grabbed and assaulted by the defendants herein.

13. That, without reasonable cause, without justification, and without probable cause, the plaintiff was attacked and beaten, by the defendant(s), their agent(s), servant(s) and/or employee(s).

14. That, the plaintiff felt pain and was choked, thrown to the ground and beaten by the defendants as a result of the aforementioned conduct of the defendant(s), their agent(s),

servant(s) and/or employee(s).

15. That, thereafter there came a time when the plaintiff remained, and was under the custody, control, and against his will, by the defendant(s), their agent(s), servant(s) and/or employee(s).

16. That, at all times, wherein the plaintiff was under the custody and control of the defendants, he was cognizant of this fact, and did not consent to being detained by the defendant(s), their agent(s), servant(s) and/or employee(s).

17. That, the plaintiff was taken to the 78th Precinct, against his will, as a result of the conduct and actions of the defendant(s), their agent(s), servant(s) and/or employee(s), where he was searched and held in a cell.

18. That, thereafter, the plaintiff was taken by the defendant(s), their agent(s), servant(s) and/or employee(s) from the aforementioned 78th Precinct, to Central Booking.

19. That, the plaintiff was never told why he was arrested or detained, nor told why he was held against his will.

20. That, the plaintiff was taken by the defendant(s), their agent(s), servant(s) and/or employee(s) to Central Booking, whereby he saw a judge, and was released on his own recognizance.

21. That the plaintiff was unlawfully and falsely, charged with various crimes, including, but not limited to resisting arrest, obstruction of governmental administration, and

Criminal possession of a forged instrument.

22. That, the plaintiff was caused to appear in Criminal Court, due to the conduct of the defendants herein, and thereafter on May 24, 2023, all charges were dismissed against him.

23. That, as a result of the excessive force, used by the defendant(s), their agent(s), servant(s) and/or employee(s) as noted above, the plaintiff was caused to undergo hospital, medical treatment and advice, and sustained personal injuries, as well as loss of enjoyment of life.

24. That, the defendants owed a duty to the plaintiff, **DARIN MOORE** under his Constitutional rights and had breached said duty; that as a result of the foregoing the defendants had violated and otherwise breached that duty; that as a direct and proximate result of that breach, the plaintiff, **DARIN MOORE** was caused to sustain serious and severe personal injuries.

AS AND FOR A FIRST CAUSE OF ACTION
(Assault and Battery)

25. That, the plaintiff, **DARIN MOORE** repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 24 with the same force and effect as if hereinafter more fully set forth at length herein.

26. That, on February 17, 2023, the plaintiff, **DARIN MOORE**, was assaulted/battered by the defendant, and/or defendants

by and through their agents, servants and/or employees.

27. That, the plaintiff, **DARIN MOORE**, was assaulted/battered without justification and without cause and without excuse.

28. That, the assault/battery took place in front of the Barclay Center at Pacific Avenue and Flatbush Avenue , in the County of Kings, City and State of New York and other locations wherein the plaintiff, **DARIN MOORE** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

29. That, at all times hereinafter mentioned and on February 17, 2023,, and for sometime prior thereto, defendants, **GEORGE and DOES** were New York City police officers, and/or agents, servants and/or employees of **THE CITY**, working in the scope and course of their employment as New York City Police Officers, and were employed by the defendant, **THE CITY**.

30. That, the aforementioned assault and battery of the plaintiff, **DARIN MOORE**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY**.

31. That, by reason of the foregoing, the plaintiff, **DARIN MOORE**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon

information and belief, his injuries are permanent in nature and effect.

32. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

33. That, by reason of the foregoing, the plaintiff, **DARIN MOORE**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

(Negligent Hiring, Negligent
Training, Negligent
Retention and
Negligent Supervision)

34. That, the plaintiff, **DARIN MOORE**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 33 with the same force and effect as if hereinafter more fully set forth at length herein.

35. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

36. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

37. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **GEORGE** were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

38. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendants, **DOES** were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

39. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **GEORGE**, who was employed by the defendant, **THE CITY**.

40. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendants, **DOES**, who were employed by the defendant, **THE CITY**.

41. That, by reason of the foregoing, the plaintiff, **DARIN MOORE** was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

42. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

43. That, by reason of the foregoing, the plaintiff, **DARIN MOORE** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

(False Arrest and
False Imprisonment)

44. That the plaintiff, **DARIN MOORE**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 43 with the same force and effect as if hereinafter more fully set forth at length herein.

45. That, on February 17, 2023, the plaintiff, **DARIN MOORE**, was caused to be falsely arrested and falsely imprisoned without probable cause.

46. That, the plaintiff, **DARIN MOORE**, was arrested without an arrest warrant.

47. That, the false arrest/false imprisonment took place on Pacific Avenue, and Flatbush Avenue, in the County of Kings, City and State of New York, and thereafter continuing at other locations wherein the plaintiff, **DARIN MOORE** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

48. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DARIN MOORE**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

49. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DARIN MOORE**, was carried out by defendant, **GEORGE**, and/or other servants, agents and/or employees

of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

50. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DARIN MOORE**, was carried out by defendants, **DOES**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

51. That, by reason of the foregoing, the plaintiff, **DARIN MOORE**, was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

52. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

53. That, by reason of the foregoing, the plaintiff, **DARIN MOORE**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION
(Malicious Prosecution)

54. The plaintiff, **DARIN MOORE**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 53, with the same force and effect as if hereinafter more fully set forth at length herein.

55. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DARIN MOORE**, was caused due to a malicious prosecution of the plaintiff, **DARIN MOORE**, without cause, without reasonable cause, and without color of the law.

56. That, the arresting and investigating police, who were police officers, and/or other agents, servants or were other employees of the defendant, **THE CITY OF NEW YORK**, failed to make a proper and thorough investigation of the facts, failed to make proper inquiries resulting in the false arrest and false imprisonment of the plaintiff, **DARIN MOORE**, was maliciously prosecuted without probable cause, without reasonable cause, and without color of the law.

57. That, upon information and belief, all criminal charges against the plaintiff, **DARIN MOORE**, were ultimately dismissed on May 24, 2023.

58. That, by reason of the foregoing, the plaintiff, **DARIN MOORE**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon

information and belief, his injuries are permanent in nature and effect.

59. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others.

60. That, by reason of the foregoing, the plaintiff, **DARIN MOORE**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FIFTH CAUSE OF ACTION

(Violation of Fourth, Fifth and
Fourteenth Amendment Rights)

61. The plaintiff, **DARIN MOORE**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 60, with the same force and effect as if hereinafter more fully set forth at length herein.

62. That the plaintiff, **DARIN MOORE** did not commit any illegal act, nor did the individually named defendants have reason to believe he committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, excessive force was used against him; maliciously prosecuted and deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983

and the Constitution of the State of New York.

63. That at all times hereinafter mentioned, the defendant, **GEORGE** was employed in her respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

64. That at all times hereinafter mentioned, the defendants, **DOES**, were employed in their respective capacities by the defendant, **THE CITY** and were acting under the color of their official capacity and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

65. Defendant, **GEORGE**, is being sued in her personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **GEORGE** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

66. Defendants, **DOES**, are being sued in their

personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants, **DOES** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

67. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **DARIN MOORE** of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: The right of plaintiff, **DARIN MOORE** to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **DARIN MOORE**, to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **DARIN MOORE**, not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

68. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendant while acting under color of state law and within the scope of his employ.

69. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting individuals without probable cause.

70. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting minorities without probable cause.

71. That the deprivation of plaintiff, **DARIN MOORE** Constitutional Rights was the result of the defendant, **THE CITY's** custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

72. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

73. That the detaining of plaintiff, **DARIN MOORE** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

74. That the deprivation of plaintiff, **DARIN MOORE**

Constitutional rights was the result of the defendant, **GEORGE'S** arrest of the plaintiff **DARIN MOORE** without probable cause.

75. That the deprivation of plaintiff, **DARIN MOORE** Constitutional rights was the result of the defendant, **DOES'** arrest of the plaintiff **DARIN MOORE** without probable cause.

76. That the deprivation of plaintiff **DARIN MOORE'S** Constitutional Rights was a result of the defendant, **THE CITY'S** custom and policy in failing to discipline officers for the use of excessive force.

77. That the deprivation of plaintiff, **DARIN MOORE'S** Constitutional rights was the result of the defendant, **GEORGE'S** use of excessive force.

78. That the deprivation of plaintiff, **DARIN MOORE'S** Constitutional rights was the result of the defendant, **DOES'** use of excessive force.

79. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **DARIN MOORE**.

80. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of

its various employees and/or police officers, the plaintiff, **DARIN MOORE** was caused to have his civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

81. That, by reason of the foregoing, the plaintiff **DARIN MOORE** was injured; was rendered sick, sore, lame and disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief, his injuries are permanent in nature and effect.

82. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

83. That, by reason of the foregoing, the plaintiff, **DARIN MOORE**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SIXTH CAUSE OF ACTION

(Negligent Infliction
of Emotional Distress)

84. The plaintiff repeats, reiterates and realleges

each and every allegation contained in paragraphs marked 1 through 83 with the same force and effect as if more fully set forth at length herein.

85. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, **DARIN MOORE**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

86. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

87. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

88. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

89. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine

respondeat superior.

90. That, by reason of the foregoing, the plaintiff, **DARIN MOORE**, was injured; was rendered sick, sore, lame and disabled; was, caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

91. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

92. That, by reason of the foregoing, the plaintiff, **DARIN MOORE**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SEVENTH CAUSE OF ACTION

(Intentional Infliction
of Emotional Distress)

93. That the plaintiff, **DARIN MOORE**, Repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 92 with the same force and effect as if hereinafter more fully set forth at length herein.

94. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which intentionally caused severe emotional distress to plaintiff, **DARIN MOORE**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

95. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

96. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

97. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

98. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine *respondeat superior*.

99. That, by reason of the foregoing, the plaintiff, **DARIN MOORE**, was injured; was rendered sick, sore, lame and

disabled; was and/or will be caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

100. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

101. That, by reason of the foregoing, the plaintiff, **DARIN MOORE**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR AN EIGHTH CAUSE OF ACTION

(Failure to Intervene)

102. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 101 with the same force and effect as if more fully set forth at length herein.

103. That the defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of the plaintiff, whose constitutional rights were being violated in their presence by other officers.

104. Defendants failed to intervene to prevent the

unlawful conduct described herein.

105. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

106. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

107. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

108. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

110. That, by reason of the foregoing, the plaintiff, **DARIN MOORE**, was injured; was rendered sick, sore, lame and disabled; and/or will be was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

111. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as

well as having performed intentional acts.

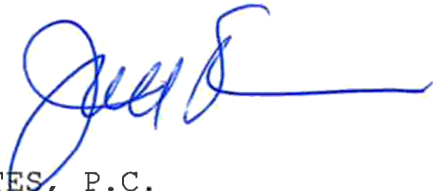
112. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

113. That, by reason of the foregoing, the plaintiff, **DARIN MOORE**, has sustained damages in an amount in excess of the the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiff, **DARIN MOORE**, demands judgment against the defendants, on the First, Second, Third, Fourth Fifth, Sixth, Seventh and Eighth causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York; together with interest, as well as the costs, disbursements and legal fees pursuant to 42 U.S.C. Section 1988, of these causes of action.

Dated: New York, New York
January 10, 2024

Yours, etc.


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SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff,
DARIN MOORE
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Mineola, New York 11501
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ATTORNEY'S VERIFICATION

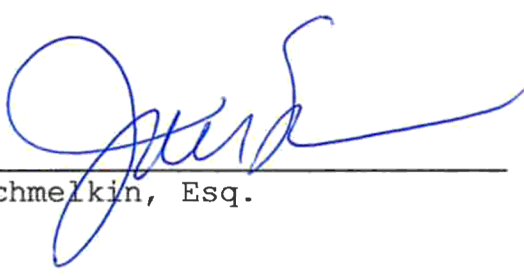
STATE OF NEW YORK)
) ss.:
COUNTY OF NASSAU)

Joel Schmelkin, an attorney admitted to practice law in the State of New York, states, the following:

I am a member of the law firm of Schmelkin Associates, P.C., the attorneys of record for the plaintiff in the within action. I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe it to be true. This verification is made by me and not by the plaintiff because the plaintiff does not reside in the County where Schmelkin Associates, P.C. maintains its office.

The grounds of my belief as to all matters not stated upon my knowledge are conversations with plaintiff and contents of the file maintained by Schmelkin Associates, P.C.

Dated: New York, New York
 January 10, 2024



Joel Schmelkin, Esq.

Index No.

Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF **KINGS**

DARIN MOORE,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O.MICHELLE GEORGE, and "JOHN DOES 1-5," IDENTITY UNKNOWN,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

DARIN MOORE

Office and Post Office Address, Telephone

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(212) 227-8865

(516) 696-8865

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: January 10, 2024

Signature

Print Signer's Name

JOEL SCHMELKIN

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

☐NOTICE OF
ENTRYthat the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

☐NOTICE OF
SETTLEMENT

that an Order of which the within is a true copy will be presented for settlement to the
Hon. _____, one of the judges of the within-named Court,
at _____
on _____, at _____ M.

Dated:

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

Office and Post Office Address, Telephone

344 WILLIS AVENUE

MINEOLA, NY 11501

To:

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